

25CHCV00731 25CHCV00731

County: los-angeles

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Case Number: 25CHCV00731 Hearing Date: September 16, 2026 Dept: F49

Dept. F49

Date: 9/16/26

Case Name: Janeth Lizbeth Roldan; Juan Carlos Mendez
vs. Elman Rene Chacon Venura; and Does 1-10

Case No. 25CHCV00731

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

SEPTEMBER 16, 2026

MOTION TO COMPEL RESPONSES
TO INTERROGATORIES; REQUEST FOR SANCTIONS

Los Angeles Superior
Court Case No. 25CHCV00731

Motion filed: 4/8/26

MOVING PARTY: Defendant Elman Rene Chacon Ventura

RESPONDING PARTY: Plaintiff Janeth Lizbeth Roldan

NOTICE: OK

RELIEF REQUESTED: An order from this Court compelling Plaintiff Janeth Lizbeth Roldan to respond to Defendant's Form Interrogatories, Set One, and Special Interrogatories, Set One; and awarding monetary sanctions in the amount of \$835.00.

TENTATIVE RULING: The motion is DENIED. The request for sanctions is GRANTED IN PART.

BACKGROUND

This action arises from injuries allegedly sustained by Plaintiffs Janeth Lizbeth Roldan ("Roldan") and Juan Carlos Mendez ("Mendez") (collectively, "Plaintiffs") in a motor vehicle accident that occurred on March 16, 2023. On February 27, 2025, Plaintiffs filed the Complaint against Defendant Elman Rene Chacon Ventura ("Defendant") and Does 1 through 10, alleging motor vehicle and general negligence.

On June 20, 2025, Defendant filed an Answer to the Complaint.

On April 8, 2026, Defendant filed the instant motion to compel Roldan to respond to Defendant's Form Interrogatories, Set One, and Special Interrogatories, Set One (the "Motion").

On September 8, 2026, Roldan filed an Opposition.

On September 10, 2026, Defendant filed a Reply.

ANALYSIS

A.

Preliminary Considerations

As a preliminary consideration, the Court notes that Defendant has combined two motions into one. The Court

Reservation System requires a separate hearing reservation for each motion, and the Government Code requires a separate filing fee be paid for each motion. (Gov. Code, § 70617, subd. (f).)

The Discovery Act recognizes form interrogatories and special interrogatories as distinct discovery devices. A party seeking to compel form and special interrogatories must accordingly bring separate motions and pay separate filing fees for each.

Here, Defendant has moved to compel both form and special interrogatories in a single motion and has paid only one filing fee rather than two, circumventing statutory and Court requirements.

The Court accordingly orders Defendant to pay an additional \$60.00 filing fee.

B.
Motion to Compel Responses to Form and
Special Interrogatories

“A defendant may propound interrogatories to a party to the action without leave of court at any time.” (Code Civ. Proc. § 2030.020, subd. (a).) “Within 30 days after service of interrogatories, the party to whom the interrogatories are propounded shall serve the original of the response to them on the propounding party.” (Code Civ. Proc. § 2030.260, subd. (a).)

If a party fails to timely serve responses to interrogatories, the propounding party may move for an order compelling response. (Code Civ. Proc. § 2030.290, subd. (b).)

A party who fails to timely respond to interrogatories waives “any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010).” (Code Civ. Proc., § 2030.290, subd. (a).) The Court may relieve the party from that waiver if the party has subsequently served a response that substantially complies with the statute and the failure to serve a timely response was due to mistake, inadvertence, or excusable neglect. (Ibid.)

Defendant seeks to compel Roldan to respond to his Form Interrogatories, Set One, and Special Interrogatories, Set One. In Opposition, Roldan asserts that she served verified responses to the interrogatories on June 2, 2026. (Opp'n, at p. 2.) Plaintiffs' counsel attests that the responses were electronically served after he re-established contact with Roldan in late May 2026. (Jimenez Decl., ¶¶ 3-4.) Defendant does not dispute that responses were served. Instead, Defendant contends that the belated service does not excuse the failure to respond that necessitated the Motion and argues that sanctions are still warranted. (Reply, at pp. 2-3.)

Accordingly, the Court DENIES the Motion to compel responses as moot. The Court retains authority to consider the issue of sanctions.

C.

Monetary Sanctions

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.290(c)).

Code of Civil Procedure section 2023.030

authorizes the Court to impose monetary sanctions against any party, person, or attorney who engages in conduct that constitutes a misuse of the discovery process. Misuses of the discovery process include failing to respond to an authorized method of discovery. (Code Civ. Proc., § 2023.010, subd. (d).) Further, the Court may award sanctions "in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed[] ... or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348(a).)

Roldan does

not offer justification for the untimely service of responses. The Court accordingly finds sanctions to be warranted.

In

the motion papers, Defendant requests monetary sanctions against Roldan and her counsel of record in the amount of \$835.00, calculated as 3.1 hours spent

preparing the Motion at an hourly rate of \$250.00, plus \$60.00 in filing fees. (Nguyen Decl., ¶ 7.) However, in Reply, Defendant requests a total of \$1,275.00, adding two hours spent reviewing the Opposition and preparing the reply papers.

The

Court notes that the Notice of Motion and Motion do not indicate that Defendant is seeking fees beyond those incurred for preparation and filing of the motion papers and do not reserve the right to supplement or seek additional fees. The Court accordingly finds that there is inadequate notice for an award greater than the reasonable costs and fees connected with the moving papers.

Roldan asserts

that the requested sanctions are unreasonable given the lack of complexity of the Motion. (Opp'n, at p. 2.) The Court agrees that the Motion was a straightforward motion directed to service of initial discovery responses. The Court therefore finds the total and reasonable fees and costs incurred in connection with preparing and filing the Motion to be \$435.00, calculated as 1.5 hours spent preparing the Motion at a reasonable hourly rate of \$250.00, plus the \$60.00 filing fee.

Defendant's

request for monetary sanctions is thus GRANTED IN PART.

CONCLUSION

The Court DENIES Defendant's motion to compel Plaintiff Janeth Lizbeth Roldan's responses to Defendant's Form Interrogatories, Set One, and Special Interrogatories, Set One.

Defendant's request for sanctions is GRANTED IN PART. Plaintiff Janeth Lizbeth Roldan and her attorney of record are ordered to pay \$435.00, jointly and severally, to Defendant within 30 days.

Defendant is ordered to pay an additional \$60 filing fee to the clerk.

Moving party to give notice.